

SUPERIOR COURT OF CALIFORNIA, CONTRA COSTA COUNTY
MARTINEZ, CA
DEPARTMENT 34
JUDICIAL OFFICER: LEONARD E MARQUEZ
HEARING DATE: 03/23/2026

INSTRUCTIONS FOR CONTESTING TENTATIVE RULING IN DEPARTMENT 34

The tentative ruling will become the ruling of the Court unless by 4:00PM of the Court day preceding the hearing, notice is given of an intent to argue the matter. Counsel or self-represented parties must email Department 34 (Dept34@contracosta.courts.ca.gov) to request argument and must specify, in detail, what provision(s) of the tentative ruling they intend to argue and why. Counsel or self-represented parties requesting argument must advise all other counsel and self-represented parties by no later than 4:00PM of their decision to argue, and of the issues to be argued. Failure to timely advise the Court and counsel or self-represented parties will preclude any party from arguing the matter. (Pursuant to Local Rule 3.43(2).)

ALL APPEARANCES TO ARGUE WILL BE IN PERSON OR BY ZOOM, PROVIDED
THAT PROPER NOTIFICATION IS RECEIVED BY THE DEPARTMENT AS PER
ABOVE.

Zoom link-

[https://contracosta-courts-
ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09](https://contracosta-courts-ca.zoomgov.com/j/1611085023?pwd=SUxPTEFLVzRFYXZycWdTWlJCdlhIdz09)

Meeting ID: 161 108 5023
Passcode: 869677

Law & Motion

1. 9:00 AM CASE NUMBER: C23-01137
CASE NAME: BRAYAN RUBIO VS. HATEM AHMED
***HEARING ON MINOR'S COMPROMISE RE: BRITSSA ALFEREZ RUBIO**
FILED BY: RUBIO, BRAYAN
TENTATIVE RULING:

The minor plaintiffs Britssa Alferez Rubio, Jonathan Alferez Rubio, and Kevin Alferez, by and through their duly appointed guardian *ad litem* herein, Claudia Rubio ("Plaintiffs") filed three separate petitions on November 3, 2025 seeking court approval of the compromises of Plaintiffs' claims and proposed dispositions set forth therein (the "Minor's Compromise Petitions"). See Code Civ. Proc. § 372 and Rule 7.950 *et seq.* of the California Rules of Court (CRC). The Minor's Compromise Petitions were set for hearing on March 23, 2026.

Analysis

The Minor's Compromise Petitions are unopposed. The Court has considered the verified Minor's

Compromise Petitions and finds the proposed terms to be just and reasonable.

Disposition

The Court finds and rules as follows:

1. The Minor's Compromise Petitions are APPROVED.
2. Counsel for the moving parties to submit proposed forms of order for the Court's approval and entry.

2. 9:00 AM CASE NUMBER: C23-01137
CASE NAME: BRAYAN RUBIO VS. HATEM AHMED
***HEARING ON MINOR'S COMPROMISE RE: JONATHAN ALFEREZ RUBIO**
FILED BY: RUBIO, BRAYAN
TENTATIVE RULING:

See LINE 1 above.

3. 9:00 AM CASE NUMBER: C23-01137
CASE NAME: BRAYAN RUBIO VS. HATEM AHMED
***HEARING ON MINOR'S COMPROMISE RE: KEVIN ALFEREZ RUBIO**
FILED BY: RUBIO, BRAYAN
TENTATIVE RULING:

See LINE 1 above.

4. 9:00 AM CASE NUMBER: C23-01955
CASE NAME: NICOLE TRIPPIE VS. MISTY LEONE
***HEARING ON MOTION IN RE: MOVE THE OBJECTION/REPLY FILING DATE AND THE HEARING DATE FOR COURT-APPOINTED RECEIVER DAN HARKINS' MOTION FOR AN ORDER TERMINATING RECEIVERSHIP**
FILED BY: TRIPPIE, NICOLE D.
TENTATIVE RULING:

Plaintiff Nicole Trippie ("Plaintiff") filed a Motion to (1) Move the Objection/Reply Filing Dates and the Hearing Date for Court-Appointed Receiver Dan Harkins' Motion for an Order Terminating Receivership, (2) Order Court-Appointed Receiver Dan Harkins to Submit to Discovery, and (3) Terminate the Receivership, but not Discharge Dan Harkins on November 17, 2025 (the "November 17, 2025 Motion"). The November 17, 2025 Motion was set for hearing on March 23, 2026.

The Request for Judicial Notice filed in support of the motion is GRANTED.

Background

The court-appointed receiver (the "Receiver") filed a final account and report on November 3, 2025. The Receiver has filed a Motion for an Order: 1. Approving Receiver's Final Report and Account; 2.